

The Claremont City Council held a meeting on Wednesday, August 24, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

John P. Bohenko, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

Mayor Girard added Non-public after Consultation with Legal Counsel relative to RSA 91-A:3 II(b) for the hiring of a public employee.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to accept the minutes of the August 9, 2022, City Council meeting.

Voice vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to accept the minutes of the August 10, 2022, City Council meeting.

Voice vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

MAYOR'S NOTES

Mayor Girard noted that he reached out to NHMA for legal advice relative to Councilor Contois sitting next to the other Council members. After legal guidance, Mayor Girard expressed it is best to have Councilor Contois remain in his seat away from the table for liability reasons.

Mayor Girard noted that he reached out to NHMA for the refusal to vote during the last meeting. According to Attorney Stephan Buckley at NHMA it was advised this will discount as an extension, and the Council will move on. Mayor Girard noted reaching out to NHMA was a free service.

Mayor Girard made note of a few public safety employees that have passed:

Retired Claremont Lieutenant, Ronnie Nelson, who had fifty-two years in law enforcement, recently in the Sheriff's Office. Lyle Howe, who was a retired Advanced Emergency Medicine Technician who worked at Golden Cross for forty-plus years. Mayor Girard asked for a moment of silence.

Claremont School district is holding a back to school festival from 10AM to 12PM at Barnes Park.

Monday evening, Director Merrill will be hosting a public workshop at 5:30 PM relative to the Brownfields studies.

CITY MANAGER'S REPORT

Mr. Bohenko advised the Council about city owned vacant buildings. Between encumbered funds, and appropriated funds there is about \$45,000.00 being used to secure these vacant

buildings; the objective is to cut down brush and make it easily accessible and visible to emergency services.

Mr. Bohenko mentioned a conditional offer of employment has been given to a Director of Parks and Recreation, once the background check and references have been completed, information will be sent to Council.

Mr. Bohenko addressed a question that was brought up in a previous Council meeting relative to SAU revenue in relation to their use of City recreation facilities. Mr. Bohenko noted Parks and Recreation receive \$10.00 per participant in the Summer Camp Program, totaling about \$7400.00. Last year, the City received about \$14,000.00 in revenue from outdoor sports facilities.

Mr. Bohenko stated the sidewalks from Hannover St. to Disnard School paving should be completed today. The sidewalks from the middle school to Pleasant Street are starting.

Mr. Bohenko noted a draft policy for Public Art was created and will be sent out for review.

CITIZEN'S FORUM

Mayor Girard reminded everyone that each individual may speak for a total of five minutes, on non-agenda items.

Roberta Hood, "Robin Hood", Ward 1, states she was misquoted in minutes and a lack of handicap accessibility should have been stated as inadequate accessibility. Mr. Bohenko reminded Ms. Hood there is a Traffic Advisory Committee next Wednesday at 11AM to review handicap accessibility.

Shawn MacCarthy, Ward 1, asked Mayor Girard to state the vote after motions are made.

Representative Walt Stapelton, Ward 3, stated a vote passed for the long working efforts to rehabilitate Sullivan County Healthcare. Mr. Stapleton stated the need to take care of seniors, and that this is a much-needed project.

OLD BUSINESS

Ordinance 595 Amendment One Way Pleasant Street – Second Reading – Public Hearing

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #595

“TRAFFIC AND MOTOR VEHICLES”

The City of Claremont Ordains:

Pursuant New Hampshire RSA 47:14 and RSA 265:10, and Chapter 19 (Traffic and Motor Vehicles), Article VI (Specific Street Regulations), Section 19-121 (One-Way Streets) of the City of Claremont Code is hereby amended as follows:

Section 1. Chapter 19, Article VI

Section 19-121 (One-Way Streets) is hereby amended to add the following locations:

Glidden Street, from Pleasant Street to Broad Street, east traffic flow only.
Pleasant Street, from Opera House Square to School Street, south traffic flow only.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 19, Article VI, Section 19-121 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect immediately upon passage.

A motion was made by Councilor Mooshian and seconded by Assistant Mayor Matteau to adopt Ordinance 595.

Councilor Mooshian read Ordinance 595 into the record

Mayor Girard opened a public hearing. No one spoke, Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O’Hearne - no

Stone - no

Matteau -yes

Koloski - yes
Limoges - yes
Mooshian - yes
Girard - yes
Motion carried 6-2

Ordinance 596 Amendment Weight Limit Restriction – Second Reading – Public Hearing

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #596

“TRAFFIC AND MOTOR VEHICLES”

The City of Claremont Ordains:

Pursuant New Hampshire RSA 47:17 and Chapter 19 (Traffic and Motor Vehicles), Article VI (Specific Street Regulations), Section 19-128 (Weight Limit – Ten Thousand and One Pounds or More) of the City of Claremont Code is hereby amended as follows:

Section 1. Chapter 19, Article VI

Section 19-128 (Weight Limit – Ten Thousand and One Pounds or More) is hereby amended to add the following location to the list of streets with such weight limitation:

(e) No commercial vehicle having a gross weight limit of ten thousand one (10,001) pounds or more as listed on its registration shall be operated on Pleasant Street, between Opera House Square and School Street, except for purposes of making deliveries to, providing services for, or going to or from a specific place on such section of Pleasant Street.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 19, Article VI, Section 19-128 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect immediately upon passage.

Director Merrill explained the State has changed its truck routes, and the only way to enforce this is to amend the existing ordinance.

A motion was made by Councilor Koloski and seconded by Councilor Mooshian to adopt Ordinance 596.

Councilor Koloski read Ordinance 596 into the record.

Councilor Koloski shared concern for the weight limit number, and asked when it will come to Council to be changed. Mr. Bohenko added this topic can go through the Traffic Advisory Committee.

Mayor Girard opened a public hearing.

Roberta Hood, Ward 1, asked how this will be enforced.

Chief Wilmot explained enforcement through City Ordinance and a violation of City ordinances could result in a fine.

Walt Stapleton, Ward 3, asked if there will be signage so these vehicles don't take the wrong route, Mr. Bohenko noted there will be a follow up for electric signage.

Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O'Hearne - no

Stone - no

Matteau - yes

Koloski - yes

Limoges - no

Mooshian - yes

Girard - yes

Motion carried 5-3

2023-2024 Legislative Policy Process

Important Dates & Updates!

FLOOR POLICIES DUE: August 12 POLICY CONFERENCE: September 23

The NHMA legislative policy process is moving forward! Below are the links to the proposed 2023-2024 Legislative Policy Positions and Legislative Principles, as recommended by NHMA's three policy committees. NHMA members will have an opportunity to vote on these proposals at the Legislative Policy Conference on September 23. *We urge each municipality's governing body, prior to the Legislative Policy Conference, to vote a position on the recommendations and floor proposals (see below) to provide direction to your voting delegate at the conference.* Otherwise, your delegate is free to cast your municipality's vote as he or she chooses.

In addition, any municipality with an interest in proposing an additional policy may do so through the floor policy process, described below. We will be providing a copy of those floor policy proposals to members in advance of the policy conference.

NOTE: Please do not send your governing body's vote results or positions to NHMA. Your governing body's discussions and votes are only for the direction of your voting delegate. The only way a municipality may vote on these policies is to send a voting delegate to the policy conference on September 23.

Mayor Girard noted this was brought up at our last Council meeting, and have been asked to send a representative, Councilor Mooshian plans to be the representative.

NEW BUSINESS

Resolution 2023-10 Permitting and Monitoring – Former Synergy Site. Public Hearing

Director Merrill explained an agreement between the EPA and AmeriGas to clean the site up, and a separate agreement with the City, the City received \$75,000 to go into a fund that goes to the maintenance for the site. Ms. Merrill explained the agreement with AmeriGas who was required to take care of the groundwater monitoring for the first five years, the five years are up and are to be taken over by the City.

RESOLUTION 2023-10

Lower Cul-de-Sac Non-Capital Reserve Withdrawal

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City Council, on October 24, 2018, by adoption of Resolution 2019-9, as amended, established the Lower Cul-de-Sac Non-Capital Reserve Fund for the purpose of operations and maintenance expenses relating to property located at Lower Cul-de-Sac Place, or for any obligation related to the Property's environmental condition as of the date of transfer of the property to the City, pursuant to the Settlement Agreement between AmeriGas Propane, L.P. and the City dated March 27, 2015, and;

WHEREAS there is a need to renew the site permit with NH Department of Environmental Services and to conduct ground water monitoring for 2022;

NOW THEREFORE BE IT RESOLVED by the City Council to raise, appropriate and expend the sum of up to \$18,500.00 from the Lower Cul-de-Sac Non-Capital Reserve Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds from the Lower Cul-de-Sac Non-Capital Reserve Fund; and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor Koloski and seconded by Councilor Stone to adopt resolution 2023-10.

Councilor Koloski read Resolution 2023-10 into the record.

Mayor Girard opened the public hearing, no one spoke. Mayor Girard Closed the public hearing.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

A proposed amendment to repeal the assessing ordinance 565-chapter 2 article II

Division eight section 2-126 Discussion

Repeal in their entirety the following Sections:

Sec. 2-125. - Purpose.

Sec. 2-126. - Creation; membership.

Sec. 2-127. - Powers and duties.

Readopt and revise the following:

Sec. 2-262. - Assessing division.

The assessing division shall consist of a state D.R.A. certified appraiser, and other personnel as may be approved by the city manager. The city assessor and staff shall perform the following functions:

- (1) The city assessor shall act in all manners as the assessing official and carry out all the duties relative to appraisal of property for taxation as the assessing official as provided by law.
- (2) Prepare all assessments and tax rolls and notices as required by law and submit assessments for use in the billing of taxes.
- (3) Review all property transfers and maintain all property records pertaining to the assessing function.
- (4) Review and approve or deny all abatement requests, applications for exemptions, credits and deferrals.
- (5) Defend the abatement decisions appealed to the NH board of tax and land appeals or superior court, including resolving same through negotiations.
- (6) Prepare and submit regular reports to the Mayor and City Council detailing abatement requests made, abatements granted or denied, abatements appealed to the NH board of tax and land appeals or the superior court and the outcome or disposition of any appeal.
- (7) The assessing division staff shall support the duties of the city assessor.
- (8) Perform other functions as required.

Mr. Bohenko noted the City Attorney has not completed this ordinance yet, and Mr. Hamilton stated there is plenty of time to have the City Attorney review the proposed repeal.

Councilor Stone asked if the BOA members were invited to the September 14th Council meeting, Mr. Hamilton stated he will invite them during their BOA meeting on August 30th.

Mr. Bohenko stated the repeal of the Assessing Ordinance will be moved to a future meeting.

COMMITTEE REPORTS

Councilor Stone Stated a Policy Committee on September 20th will hold the final phase of the food truck discussion.

Councilor Contois noted the Conservation Commission will hold a Bear Program by Bill Kilham at the senior center in September.

Assistant Mayor Matteau stated there is a Planning Board Meeting next Monday.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski stated the meeting is running ahead of schedule and asked if the Mayor could re-open Citizens Forum for those who came to speak that just arrived.

CITIZENS FORUM

Hope Damon, who is running for state representative stated she would bring a very honest, and sincerest middle ground and hopes to represent us in Concord. Ms. Damon then handed out literature to the Council.

Mayor Girard stated there is an open Council seat, and if anyone would like to apply should bring their application to the City Manager's Office office by September 7th at 5pm.

CONSULTATION WITH LEGAL COUNSEL

None.

City of Claremont Nonpublic Session Minutes City Council

Date: 8/24/2022

Members Present

O'Hearne, Contois, Stone, Assistant Mayor Matteau, Koloski, Limoges, Mooshian, Girard

Non-Members Invited to Attend Nonpublic Session

None.

Motion to enter Nonpublic Session made by Councilor Stone seconded by Assistant Mayor Matteau
Names of members and all other persons attending the Nonpublic Session:

Specific Statutory Reason cited as foundation for the nonpublic session: RSA 91-A:3, II(b) *The hiring of any person as a public employee.*

Roll Call vote to enter nonpublic session: Majority vote required

Roll call:

Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Mooshian - yes
Girard - yes
Motion carried 8-0

Motion: PASSED

Entered nonpublic session at 7:26p.m.

Motion to leave nonpublic session and return to public session by Councilor Stone seconded by Assistant Mayor Matteau. (**Majority vote by roll call.**)

Roll call:

Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Mooshian - yes
Girard - yes
Motion carried 8-0

Motion: PASSED

Start recording public meeting (if applicable).

Public session reconvened at 7:59 p.m.

Note: Under RSA 91-A:3, III. *Minutes of meetings in nonpublic session shall be kept and the record of all actions shall be promptly made available for public inspection, except as provided in this section. Minutes of such sessions shall record all actions in such a manner that the vote of each member is ascertained and recorded. Minutes and decisions reached in nonpublic session shall be publicly disclosed within 72 hours of the meeting, unless, by recorded vote of 2/3 of the members present taken in public session, it is determined that divulgence of the information likely would affect adversely the reputation of any person other than a member of the public body itself, or render the proposed action ineffective, or pertain to terrorism, more specifically, to matters relating to the preparation for and the carrying out of all emergency functions, developed by local or state safety officials that are directly intended to thwart a*

deliberate act that is intended to result in widespread or severe damage to property or widespread injury or loss of life. This shall include training to carry out such functions. In the event of such circumstances, information may be withheld until, in the opinion of a majority of members, the aforesaid circumstances no longer apply.

Motion made to seal these minutes? If so, motion made by Assistant Mayor Matteau, seconded by Councilor Stone, because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.

Roll Call Vote to seal minutes (2/3 vote required)

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Motion: PASSED

Motion to adjourn at 8:01 p.m. made by Assistant Mayor Matteau and seconded by Councilor O'Hearne.

Motion: PASSED

These minutes recorded by: Councilor Stone

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council